

Present :

Mr. Justice Ashish Ranjan Das.

Criminal Revision No. 626 of 2022

In the matter of:

Md. Fokhor uddin

..... Petitioner

-Versus-

The State and another

..... Opposite parties.

Mr. ASM Abdur Razzaque, Advocate

.....For the convict- petitioner.

Mr. Tapash Kumar Biswas, Advocate

.... For the respondent no.2.

Mr. Kazi Eliasur Rahman, A.A.G. with

Ms. Tahmina Sultana, A.A.G

... For the State

Heard on: 19.10.2022 and 21.11.2022.

Judgment on: 04.12.2022

Ashish Ranjan Das, J:

Learned Additional Sessions Judge, Sunamgonj
by his judgment dated 27.01.2022 passed in Criminal
Appeal No.138 of 2020 arising out of Sessions Case
No. 381 of 2018 corresponding to C.R. Case No. 124
of 2017 attracting section 138 of the Negotiable

Instruments Act of 1881 dismissed the appeal and affirmed the sentence and conviction passed by the court below, hence is this Criminal Revision.

Short fact relevant for the purpose is that the petitioner accused borrowed Tk. 3,07,000/- from Sonali Bank Limited, Jagannathpur Branch, Sunamgonj and he failed to repay. He issued a cheque of the said amount that was however dishonored for want of fund. The complainant bank was communicated but of no avail. Finally the bank brought this case. The learned lawyers for both the sides jointly submit that by the time the borrower-petitioner repaid the entire cheque amount and in its support the petitioner by an supplementary affidavit supported by a certificate of the complainant bank (page No.7 of the supplementary affidavit). No additional amount was levied as fine, as I find

substance in the joint submission of the learned advocates.

Under the facts and circumstances, this revisional application may be allowed and the judgment of conviction and sentence is set aside, the complainant opposite party may withdraw the amount in deposit.

In the result, the rule is made absolute in terms of supplementary Affidavit.

Communicate the judgment and order to the court below.

Send down the L.C.R.

(Justice Ashish Ranjan Das)

Bashar B.O